

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

**12. 9:00 AM CASE NUMBER: L25-07986
CASE NAME: CAPITAL ONE, N.A. VS. TIFFANY HOLLISTER
*HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION
FILED BY: CAPITAL ONE, N.A.
*TENTATIVE RULING:***

Plaintiff has filed a Motion to enter judgment pursuant to stipulation, but has a notice problem. Notice of this Motion was provided to the Defendant by mail, apparently, but there is nothing to corroborate that this is a proper address for the Defendant. Defendant was never served with process, and has not filed any pleadings with the court. Proper service of this Motion would require personal service or, if using mail, then an acknowledgment of receipt from Defendant.

Disposition

Motion continued to 7/28/26, 9am.

Plaintiff to file Order, and to properly notify Defendant of the Motion and the date of appearance.

**13. 9:00 AM CASE NUMBER: L25-08955
CASE NAME: MIDLAND CREDIT MANAGEMENT INC. VS. CHRISTY JEREMY
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT
FILED BY: JEREMY, CHRISTY
*TENTATIVE RULING:***

Defendant filed a Motion, on 2/2/26, to vacate Entry of Default. Entry of Default was filed on 12/4/25.

Notice of this Motion was timely filed on Plaintiff.

The Motion is unopposed.

Background

On 9/11/25, Plaintiff filed a proof of service of process, reflecting that Plaintiff had served Defendant through substitute service. The proof of service reflects that, on 9/5/25, a registered process server delivered the Summons and Complaint ("The Documents") to a "worker at [the] ups store," who accepted service. The process server then mailed The Documents to the address, 2063 Main St., PMB 136, in Oakley, which, as indicated in the proof of service, was the apparent mailing address of the Defendant.

Attached to the proof of service is a Declaration of Reasonable Diligence, but the area where the declarant must list attempts they've made at personal service is blank.

Analysis

Defendant seeks relief under Section 473.5 of the Code of Civil Procedure, which confers power on the court to set aside a default judgment when the defendant does not receive actual notice of the process.

Service of process by delivering copies of the documents to someone other than defendant, and then subsequently mailing copies to the defendant, is permissible. *CCP 415.20*. However, there are prerequisites. The plaintiff must first make a good faith effort to personally serve the defendant. *CCP 415.20(b)*. "Two or three attempts to personally serve a defendant at a proper place ordinarily qualifies as "reasonable diligence."" *Rodriguez v. Cho* (2015) 236 CA4th 742, 750, quoting *American Express Centurion Bank v. Zara* (2011) 199 CA4th 383, 389.

In the instant matter, Plaintiff has not demonstrated any effort to personally serve Defendant with process.

Disposition

Defendant's Motion is Granted.

Defendant to file the Order.

14. 9:00 AM CASE NUMBER: L25-10048
CASE NAME: WELLS FARGO BANK, N.A. VS. COLIN CATES
***HEARING ON MOTION FOR DISCOVERY AN ORDER DEEMING THE TRUTH OF THE MATTERS**
SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSION AS ADMITTED
FILED BY: WELLS FARGO BANK, N.A.
TENTATIVE RULING: